

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

April 11, 2022

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers and via electronic conference meeting. Present were: MAYOR – Patrick Collins, COUNCIL MEMBERS – Dr. Michelle Aldrich, Bryan Cook, Ken Esquibel, Richard Johnson, Pete Laybourn, Dr. Mark Rinne, Scott Roybal, Tom Segrave and Jeff White. Also present: Kristina F. Jones, City Clerk. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda. Upon request by Mr. Laybourn, and pursuant to support received by Mr. Johnson and Dr. Aldrich, agenda items #21(d) and #21(e) were removed from the Consent Agenda. Upon request by Dr. Aldrich, and pursuant to support received by Mr. Laybourn and Mr. Johnson, agenda item #18 was removed from the Consent Agenda. Mr. Roybal moved to approve remaining items, seconded by Mr. Johnson. Motion carried. Voting “yes” – all members of the governing body.

[CA] Minutes from Regular Meeting of the Governing Body on March 28, 2022. Motion (per Consent Agenda) carried.

Mayor Collins opened a public hearing to hear public comment regarding the City’s intent to purchase property located at 1800 Westland Road, Cheyenne, Wyoming for the purpose of relocating the Cheyenne Transit System Office and Transfer Station. There being no comments or input and purpose of the hearing having been met, Mayor Collins closed the public hearing.

Mayor Collins opened a public hearing for one available retail liquor license application filed with the City Clerk’s Office by Ace’s Range LLC d/b/a Ace’s Range LLC, 1505 Pioneer Ave., Big D Oil Co. d/b/a Big D Oil #56, 4100 Whitney Rd., Billy Jacks - Wyoming LLC d/b/a Billy Jack’s Pizza Pub, 4020 Airport Parkway West, Suite 1, Capitol Cuisine LLC d/b/a Ike’s Bar & Grill, 122 W. 6th St., Ful-O-Pep d/b/a The Old Cheyenne Elevator, 800 W. 21st St., Get Bent, LLC d/b/a Get Bent, LLC, 707 W. Lincolnway, Peaches’ Package Liquor & Bar LLC d/b/a Peaches’ Package Liquor & Bar LLC, Anderson Corner, 3rd Filing, Lot 2, Block 1, Vitamin College Natural Food Markets, Inc. d/b/a Natural Grocers, 1851 Dell Range Blvd., Westby Edge LLC d/b/a Westby Edge LLC, 714 W. 20th St. and Wyoming Downs OTB 14 LLC d/b/a Wyoming Downs OTB 14, 1345 Dell Range Blvd., Cheyenne. Mayor Collins advised there have been 2 previous work sessions held on the applications and noted there would be a 3-minute limit for public comments. The following individuals and downtown business owners spoke in support of The Old Cheyenne Elevator project: Derek Baker, Bria Hammock, Piper Rauzi, Dave Tuebner, Mirna Rummels and Jill Lovato. Comments included: business owners are good stewards of the

community, rehabilitation of the iconic space, project involvement with the Reed Avenue corridor project, how the project will support economic development, how the business plan will support food trucks and other small community businesses, time invested in the project and that the business is family oriented. Andy Rose, The Old Cheyenne Elevator, read a letter into record in support of The Old Cheyenne Elevator. Mariah Kilmer, spoke in favor of the rail spur concept and in support of the application for Get Bent, LLC, which she feels will add to continued growth of the area. Amber Cromwell, The Design Studio, representing Ace's Range LLC, provided information on the business and stated the retail liquor license is the only type of license that the business can utilize, noting the business will be open by the end of the year. Dallas Tyrrell, Peaches' Package Liquor & Bar, identified a possible temporary location for compliance with operational status until construction is complete. Juan Coronado, co-owner of Los Conejos and Micro Popup Concepts, presented a letter of recommendation for Get Bent, LLC, from Troy Guard, Tag Restaurant Group, who he has worked with in the past. JB Kunz, Aces Range LLC, provided a letter of support from Mike Lepore and reported the project will bring business to downtown year-round. Jeremy Bay, spoke about alcohol and gambling and provided statistics involving suicide ideations related to substance abuse and gambling issues related to the Wyoming Downs application. Diana McNamara spoke in support of Get Bent, LLC, noting the importance of the project location relating to the west edge and the long history with the railroad. April Brimmer Kunz, Ace's Range LLC and former legislator, commented that all of the applicants are worthy of a liquor license. Ms. Brimmer Kunz asked that the governing body stand united in supporting possible legislative changes relating to liquor licensing. Seth Stefanik, co-owner of Los Conejos and Micro Popup Concepts, provided history of his culinary experience, voiced support for Get Bent, LLC and recommended approval of their application and explained they will be able to utilize the catering aspect and provide culinary education opportunities to the community. Members of the governing body expressed appreciation to all applicants and noted the difficulty that will be faced when awarding the license. It was noted the legislature has agreed to hear discussion on the topic of liquor licenses and regulations. Additionally, it was confirmed WAM notified members that Cheyenne has support from Burns, Lingle and Casper. Chugwater also has interest in the topic of liquor licenses as the small communities are also being affected. There being no further comments or input and purpose of the hearing having been met, Mayor Collins closed the public hearing and referred the applications to Committee of the Whole.

ORDINANCE –3rd READING – Amending the Unified Development Code (UDC) to create a Common Landscaping Plan and definition of Development Footprint (Postponed from March 28, 2022). Reporting for Public Services Committee, Mr. Cook moved to approve on third and final reading, seconded by Mr. Segrave. Mr. Cook moved to amend by substitute dated April 1, 2022, seconded by Mr. Segrave. Sarah Bargsten, BOPU Water Conservation Specialist, explained how the change will contribute to the importance of water conservation. Concerns were voiced involving abandonment of landscaping plans. Inquiry was made relating to enforcement of abandoned landscaping plans and maintenance of newly planted trees. Charles Bloom, Planning and Development Director, explained that the ordinance contains a provision for abandonment of a common landscaping plan and noted that with approval, each plan is recorded. He advised that in the event that a common landscaping plan is abandoned, an application for a new site plan can be submitted that will work with the development. Mr. Bloom noted that with current site plans once a landscape plan is approved, there are provisions that allow for compliance and provided information on offenses. He provided further information on 2 types of abandonments in which

compliance enforcement can intervene. Mr. Bloom, upon further inquiry, reported he is not aware of specific examples where complaints have gone straight to enforcement for landscaping, instead it was enforced at time of site plan review. It was noted that violations have been handled on a complaint basis and a summary of complaints could be provided. Comments were voiced involving lack of maintenance for landscaping plans, replacement of dead trees and desire to enforce applicable city code. Mr. Bloom explained the ordinance amendment impacts 80-acre sites and larger which have been identified as areas on the edge of town and advised this is where they anticipate the common landscaping plans will be put into place. Motion to amend by substitute carried. Voting “yes” – all members of the governing body. Main motion as amended by substitute carried. Voting “yes” – all members of the governing body. (#4425)

ORDINANCE –3rd READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from MUB Mixed-Use Business Emphasis to CB Community Business for land located southeast of the intersection of College Drive and Charles Street. Mr. Cook moved to approve on third and final reading, seconded by Mr. Segrave. Motion carried. Voting “yes”- all members of the governing body. (#4426)

ORDINANCE –2nd READING – Creating a new Section 9.01.010, Definitions of Title 9, Public Peace and Welfare, of the Code of the City of Cheyenne, Wyoming (Postponed from March 28, 2022). Bob Wilson noted he attended the recent Public Services Committee meeting and is supportive of amendments to the ordinance. Mr. Cook advised the item failed at the Public Services Committee meeting. Mr. Cook moved to approve on second reading, seconded by Mr. Roybal. Upon inquiry, Chief Mark Francisco, Cheyenne Police Department, explained definitions in the harassment section of city code present challenges relating to enforcement and advised the department would be satisfied with a clearer definition of assault and battery. City Attorney Stefanie Boster noted the issue was defining “harass” and proposed the following amendments: under paragraph A, remove words “compliments and”, under paragraph B, subsection 2, correct state statute citation from subsection (d) to (b) and remove paragraph B, subsection 3 in its entirety. Ms. Boster further clarified upon inquiry that “harass” is being removed as it was invoking the stalking statute. Appreciation was expressed to the Police Department for their assistance with the ordinance and to everyone involved in the discussions. Upon further inquiry, Ms. Boster advised the ordinance isn’t solely for the benefit of the recently approved anti-harassment ordinance, but the ordinance did highlight the need for definition clarification. Ms. Boster noted the ordinance clarifies the definition of assault and battery by directing law enforcement to state statutes. It was further noted the ordinance adopts statute which covers all sections in Title 9. Motion carried. Voting “yes” – all members of the governing body with the exception of Dr. Aldrich, Mr. Esquibel and Mr. Segrave voting “no”.

ORDINANCE –2nd READING – Repealing Ordinance No. 3465, and reestablishing and redefining ward boundaries within the City of Cheyenne. Jordan Evans, Laramie County GIS Cooperative Coordinator, explained the reestablishment and redefinition of ward boundaries is to align with recent legislative redistricting changes and noted proposed ward boundary alterations. Mr. Evans advised he is working closely with the Laramie County Clerk to update precincts which is based off of the proposed ward changes. Boyd Wiggam referenced an email he sent to the governing body requesting the City to consider expanding to 4 – 5 wards which he believes would allow the local government to be closer to citizens. Mr. Cook moved to approve on second reading,

seconded by Mr. Segrave. Inquiry was made that if additional wards were approved and a council member was previously in Ward III and was then considered to be in a newly established ward in the middle of their term, would they be required to run again in the newly established ward. City Attorney Stefanie Boster explained information would be provided relating to this scenario and advised the City and County Clerks have been careful to make sure council members are not displaced with respect to their current wards. City Clerk Kris Jones advised she would research the issue of being moved to a different ward in the middle of a council member's term. Inquiry was made relating to altering ward boundaries outside of the established 10-year timeframe. Motion carried. Voting "yes" – all members of the governing body.

ORDINANCE – 2nd READING – Amending the City of Cheyenne's Solid Waste Fee Schedule. Jim Ridgeway questioned the need to increase fees to cover equipment and maintenance needs and asked if there are other funding options to cover the expenses. Vicki Nemecek, Public Works Director, advised ARPA funds have been requested for some maintenance needs, specifically for the Transfer Station roof replacement and advised the increase for residential customers is 1%. Reporting for Finance Committee, Mr. White moved to approve on second reading, seconded by Mr. Segrave. It was suggested that the City look for alternate funding sources for items such as roof replacements. Comments were made relating to previous OSHA issues and financial studies relating to suggested rate increases involving sanitation services. Ms. Nemecek advised the financial plan for the solid waste system includes everything that needs to be paid for long-term including daily operations and costs for the landfill expansion. Ms. Nemecek explained at the landfill end of life, cells must be closed or monitored for 30 years. Upon inquiry, Ms. Nemecek provided information on the following: prior waste hauling to Ault, CO and funding and maintenance for roof replacements. Motion carried. Voting "yes" – all members of the governing body.

ORDINANCE – 2nd READING – Increasing the compensation for the Mayor of the City of Cheyenne, commencing January 1, 2025. Jim Ridgeway inquired if the proposed wage increase could be done through a public election process, noting he doesn't think the mayor and council members should vote on their own raises. Mayor Collins advised that if the ordinance is approved, it won't go into effect until the next Mayor takes office. City Attorney Stefanie Boster explained that because of our form of government (Mayor/Council), state statute requires that the governing body determine the pay. It was noted that the mayor receives other forms of compensation such as insurance benefits and use of a city vehicle. Mr. Ridgeway spoke in opposition of the raise due to salary and benefits. Mr. White moved to approve on second reading, seconded by Mr. Johnson. It was noted that the governing body received information from WAM containing compensation comparisons for several Wyoming cities. Cheyenne is one of few cities in the state that has a Mayor/Council form of government and compensation for city managers in other communities is much higher than the wage of Cheyenne's mayor. Clarification was made that non-binding referendums cannot be placed on an official ballot pursuant to state statute. Support was voiced for city employees' wages be taken care of prior to raising compensation for members of the governing body. Mayor Collins advised the last mayoral salary increase was approved in 2006 and took place in 2009. Members of the governing body commented on the previous increases for mayor and the demands required of the mayor. Further comment was made that in comparison, mayors and city managers provide much of the same dedication and responsibility. City Treasurer Robin Lockman confirmed there are 3 directors currently with higher salaries than the mayor.

Motion carried. Voting “yes” – all members of the governing body with the exception of Dr. Aldrich voting “no” and Mayor Collins abstaining.

ORDINANCE – 2nd READING – Increasing the compensation for members of the City Council of the City of Cheyenne and providing an effective date. Mr. White moved to approve on second reading, seconded by Mr. Roybal. It was noted that the last city council increase was in 2000. Additionally, the Cheyenne Public Employees Association (CPEA) completed a cost of living wage analysis and the result for council members suggested the increase should reflect a monthly wage of \$1,867.00 which is comparable to the suggested \$2,000.00. Clarification was made that some members of council would not be eligible for the increase until 2024 and that the proposed increase equates to about half of what county commissioners make for a comparable service. Concern was raised that the increase could impact 3 of the 9 council members due to election terms should those individuals choose to run again. Comments were made relating to the amount of time it takes to serve on the council. Motion carried. Voting “yes” – all members of the governing body with the exception of Dr. Aldrich, Dr. Rinne and Mr. White voting “no”.

ORDINANCE – 1st READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from AR Agricultural Residential to Harmony Valley Planned Unit Development (Ordinance #4274) for land located north of West College Drive and east of York Avenue – referred to Public Services Committee. (Sponsor – Mr. Cook)

ORDINANCE – 1st READING – Amending Section 10.52.030, Parking Not to Obstruct Traffic, of Chapter 10.52, Stopping, Standing and Parking Generally, of Title 10, Vehicles and Traffic, of the Code of the City of Cheyenne, Wyoming – referred to Public Services Committee. (Sponsors – Dr. Aldrich, Mr. Cook, Mr. Johnson, Dr. Rinne, Mr. Roybal and Mr. White)

ORDINANCE – 1st READING – Amending Section 9.12.080, Electric Fences Prohibited, of Chapter 9.12, Offenses Against Property, of Title 9, Public Peace and Welfare, of the Code of the City of Cheyenne, Wyoming – referred to Public Services Committee (Sponsors – Dr. Aldrich and Mr. Johnson).

Following a brief recess, Mayor Collins reconvened the meeting at 8:07 p.m.

[CA] RESOLUTION – Authorizing the Cheyenne Police Department to apply for Wyoming Department of Transportation, Highway Safety Program, Grant Funding for the City’s mobile D.U.I. Command Vehicle (Highway Safety Behavioral Grant). Motion (per Consent Agenda) carried. (#6224)

RESOLUTION – For Governing Body support of Community forum(s) and other appropriate initiatives to encourage more kindness, civility, cooperation, and respectful dialogue. Sandra Cane read a letter into the record and voiced support for the resolution. Amy Spieker spoke in favor of the resolution and encouraged the governing body to consider the historical nature of the issues and problems. Bob Wilson spoke in support of the resolution noting it suggests the governing body is interested in citizens coming together in efforts that would reduce divisiveness and create a safer environment for everyone. Mr. Cook moved to adopt, seconded by Mr. White. Dr. Aldrich, sponsor of the resolution, expressed appreciation for the council’s consideration and

advised there was previous discussion on if the resolution should have instead been a declaration. Members of the governing body provided comments supporting the effort, promotion of continued community conversations, past efforts in 2018 on a similar compassionate resolution and social justice issues. Appreciation was expressed to the public for remaining respectful and positive of each other's views during the series of meetings on the topic. It was noted the Chamber of Commerce will also be working on these types of forums and communications. Further comment was made relating to the resolution format and that since no action is required, a proclamation may have been more appropriate. Mayor Collins referenced a proclamation making April fair housing month. Motion carried. Voting "yes" – all members of the governing body. (#6225)

RESOLUTION – Directing City staff to repair the tree lawn area on Vandehei Avenue between Yellowstone Road and Stockman Street (2019-2022 1% Sales Tax fund and General Fund Reserves). Mr. Cook moved to adopt, seconded by Mr. Segrave. Mr. Cook moved to amend by substitute dated April 6, 2022, seconded by Mr. Segrave. It was noted the substitute replaces General Fund Reserves in the fifth "Whereas" clause replacing it with "approval from the governing body". Motion to amend by substitute carried. Voting "yes" – all members of the governing body. Mr. Segrave provided members of the governing body pictures of the walkway from Yellowstone to Stockman, and clarified that the city is responsible for maintenance of this area as confirmed in details of an April 4, 1991 memo and provided information on the history of the project. The importance of giving proper attention to details relating to agreements and other documents committing the city involving maintenance responsibilities was noted. Comments and concerns were raised relating to tree removal and replacement, landscaping maintenance and the importance of having a drought resistant plan. Appreciation was expressed for the City Forester and Rooted in Cheyenne for implementing appropriate soil uses for planting of specific landscaping species for successful life spans and for the importance of going to a drip watering system instead of an underground system. Main motion as amended carried. Voting "yes" – all members of the governing body. (#6226)

[CA] RESOLUTION – Amending the City of Cheyenne and Board of Public Utilities Construction Specifications and Standard Drawings, 2014 Edition – referred to Public Services Committee. (Sponsor – Mr. Cook)

[CA] Contract between the City of Cheyenne and Nova Health Care Center for occupational medicine services (General Fund). Motion (per Consent Agenda) carried (in an amount not to exceed \$11,000.00). (#7496)

[CA] Memorandum of Agreement with Arts Cheyenne for the installation of public art in the City Right of Way. Motion (per Consent Agenda) carried. (#7497)

[CA] Memorandum of Understanding between the City of Cheyenne and Cheyenne Frontier Days, Inc., for the use of City-owned land and buildings for parking, camping, and other activities during the 2022 Cheyenne Frontier Days celebration. Motion (per Consent Agenda) carried. (#7498)

Professional Services Agreement between the City of Cheyenne and Waste Management of Colorado, Inc. for the Recycling Services Project (Solid Waste Fund). Mr. White moved to approve in an amount not to exceed \$200,000.00, seconded by Mr. Johnson. Upon inquiry, Vicki Nemecek, Public Works Director, provided details on the city's recycling program including: hauling to Ft. Collins, paying per ton based tonnage costs, and history and costs relating to contamination rates. Concerns were voiced involving the importance of a public outreach campaign to provide education on what materials are recyclable on an on-going basis. Upon inquiry related to informational stickers on recycling bins, Ms. Nemecek noted replacement stickers would be included in rates and she doesn't recommend replacing them. Ms. Nemecek, upon inquiry, provided information on glass recycling and the recommendation not to place #4 and #5 plastics in recycling bins. Motion carried. Voting "yes" – all members of the governing body. (#7499)

Purchase and Sale Agreement between the City of Cheyenne and V & M Properties, LLC for property located at 1800 Westland Road, Cheyenne, Wyoming, for the purpose of relocating the Cheyenne Transit System office and transfer station (Federal Grant WY-2021-005-00 and Transit Fund). Mr. White moved to approve in an amount not to exceed \$1,180,000.00, seconded by Dr. Aldrich. Vicki Nemecek, Public Works Director, provided project history which included searching for an alternative location, noting the Transit Program was approached 2 years ago about relocating out of the downtown area. She advised the proposed location will adequately meet the program's need and reported a federal grant for a portion of the purchase was previously approved. Ms. Nemecek provided information on the process of acquiring the building and expressed appreciation to Renea Jording, Transit Director, and her staff for their efforts involving the project. The grant amount of \$1.3 million and a \$260,000.00 grant match requirement was confirmed. City Treasurer Robin Lockman, upon inquiry, confirmed the required grant match funding is available for the project. Motion carried. Voting "yes" – all members of the governing body. (#7500)

[CA] Professional Services Agreement between the City of Cheyenne and Engineering & Consulting Alliance for the Landfill Tent Building deconstruction and replacement (Solid Waste Fund). Motion (per Consent Agenda) carried (in an amount not to exceed \$159,300.00). (#7501)

[CA] Professional Services Agreement between the City of Cheyenne and Martin/ Martin Wyoming, Inc. for the Belvoir Ranch Pedestrian Bridge – Civil, Bridge Design, and Bidding/Construction Services (Belvoir Ranch Recreation Fund) – referred to Finance Committee.

[CA] Consideration of Bid #E-8-22 for a contract between the City of Cheyenne and Pine Bluffs Gravel & Excavating for Yard Waste Material Hauling and Fill Dirt Hauling for the City of Cheyenne, Compost Facility (Solid Waste Fund). Motion (per Consent Agenda) carried (in an amount not to exceed \$144,800.00). (#7502)

[CA] Consideration of Bid #E-19-22 for furnishing 95 Gallon Automated Refuse Carts for the City of Cheyenne, Sanitation Division (Solid Waste Fund). Motion (per Consent Agenda) carried (accepted bid from Otto Environmental Systems, Charlotte, NC, in an amount not to exceed \$38,539.20).

[CA] Consideration of Bid #E-15-22 for furnishing two (2) new small articulated loaders and one (1) new heavy duty vehicle for the City of Cheyenne, Community Recreation & Events Department (2019-2022 1% Sales Tax Funding) – referred to Finance Committee.

[CA] Consideration of Bid #E-22-22 for furnishing three (3) new infield groomers for the Community Recreation - Events Department – Parks Division (2019-2022 1% Sales Tax Funding) – referred to Finance Committee.

[CA] Request to approve an additional dispensing area for City of Cheyenne Limited Retail Liquor Licensee Cheyenne Country Club, located at 800 Stinner Rd., Cheyenne, Wyoming. Motion (per Consent Agenda) carried.

[CA] Transfer of ownership of retail liquor license application filed with the City Clerk's Office for Prime Realty LLC d/b/a Prime Realty, 1601 Central Avenue, Cheyenne, Wyoming (license currently held by Dillinger's, LLC d/b/a Dillinger's, 1601 Central Ave., Cheyenne, Wyoming). Motion (per Consent Agenda) carried.

Transfer of ownership of retail liquor license application filed with the City Clerk's Office for Wyoming Horse Racing LLC d/b/a Horse Palace, 1601 Central Avenue, Cheyenne, Wyoming (license held by Prime Realty LLC d/b/a Prime Realty, 1601 Central Avenue, Cheyenne, Wyoming). Paul Ryder, Wyoming Horse Racing LLC, explained he was first attracted to the former Grier Building due to the location and the possibility of utilizing the retail liquor license. Mr. Ryder provided further information on the following: other Horse Palace locations with bars rarely serve as drinking establishment destinations without participating in gaming, staff will be tips trained, tax revenues that the business will generate, jobs generated by the business and parking concerns. He reported they intend to be good partners to downtown and have joined the Chamber of Commerce and will be joining other organizations. Upon inquiry, Mr. Ryder provided information on their business demographic and reported that he does reside in Laramie county. The following individuals spoke in opposition of the transfer of ownership application: Susan Allen, Hawthorne Tree, Katy Brady, downtown business owner, Amy Spieker, Laramie County Community Partnership, Robin Roling, Chief Officer for CRMC, Chris Brady and Jim Ridgeway. The following topics were noted in relation to opposition: public safety, city's public safety budget expenses, gambling and alcohol concerns, downtown homeless population and previous denial of an off-track betting establishment zoning application. Dan Surdam, co-owner of Prime Realty, reported he is passionate about downtown and noted that without viable tenants, historical buildings often fall into disrepair. Mr. Surdam commented that off track betting isn't uncommon and acknowledged that alcohol and gambling addictions are real concerns, but he feels that denying the transfer isn't the answer to solving the overall issues. Mr. White reported there was no recommendation from the Finance Committee. Mr. White moved to approve, seconded by Mr. Johnson. Clarification was provided that a previous off track betting establishment was denied approval at the old Jackson's location due to a zoning issue rather than eligibility of business type. It was noted that the Horse Palace can still open for business at the proposed location without a liquor license. Upon inquiry, Chief Mark Francisco, Police Department, provided a history of calls to the existing Wyoming Horse Palace noting there have been a few but the business has worked with the Police Department to improve security. Upon inquiry, Mr. Ryder advised they do not plan on catering, the annual projection of alcohol sales is \$128,000.00, employees will have health

insurance and a 401k, they intend to hire approximately 10 employees and he provided proposed hours of operation. It was further advised that should issues with the establishment arise during the year, they can be addressed anytime, not just during the liquor license renewal period. City Clerk Kris Jones, upon inquiry, reported that although Dillinger's at one time inquired about operating as a steakhouse and subsequently had inquired about other business plans, they remained eligible for a retail liquor license. Upon further inquiry, Ms. Jones advised the transaction amount between license seller and buyer is a private matter. Comments were made on the following: liquor license transfers should be considered individually and specific to the business plan, gaming business locations in town, and concerns and history of failed businesses at the proposed location. Clarification was made that bars can have games in their establishments and a few downtown locations were identified as having gaming machines. Motion carried. Voting "yes" – all members of the governing body with the exception of Dr. Aldrich and Mr. Laybourn voting "no".

[CA] Restaurant liquor license application filed with the City Clerk's Office for Osterfoss Living Trust Dated May 20, 2020 d/b/a Nagle-Warren Mansion, LLC, 222 E. 17th St., Cheyenne, Wyoming. Motion (per Consent Agenda) carried.

No comments were made on the Voucher Report as presented.

Announcement was made of a Public Hearing to be held April 25, 2022 at 6:00 p.m. in City Council Chambers, 2101 O'Neil Avenue, Cheyenne, WY, and via electronic conference meeting, to hear public comment for the City of Cheyenne's Annual Action Plan Fiscal Year 2022 prepared by the Cheyenne Housing and Community Development Office.

Announcement was made of a Public Hearing to be held April 25, 2022 at 6:00 p.m. in City Council Chambers, 2101 O'Neil Avenue, Cheyenne, WY, and via electronic conference meeting, to receive comments and input for an amendment to the Hitching Post Urban Renewal Plan and Project as required by Wyoming Statute Pursuant to Wyoming Statute §15-9-109.

Announcement was made of a Public Hearing to be held April 25, 2022 at 6:00 p.m. in City Council Chambers, 2101 O'Neil Avenue, Cheyenne, WY, and via electronic conference meeting for a transfer of ownership of retail liquor license application filed with the City Clerk's Office for 307 Horse Racing, Inc. d/b/a The Derby Club - Cheyenne, 1510 E. Pershing, Cheyenne, Wyoming (license currently held by Stults Management, LLC d/b/a The Office Bar & Grill, 1600 E. Pershing Blvd.).

Announcement was made of a Public Hearing to be held April 25, 2022 at 6:00 p.m. in City Council Chambers, 2101 O'Neil Avenue, Cheyenne, WY, and via electronic conference meeting for a for a bar and grill license application filed with the City Clerk's Office for Stults Management LLC d/b/a The Office Bar & Eatery, 1600 E. Pershing Blvd. #100, Cheyenne, WY.

Under other business:

Dr. Aldrich provided information on the next City Council and Coffee event to be held on Saturday, April 16th from 9-11 a.m. at Dazbog Coffee, 3911 E. Pershing Blvd., Suite A.

Mr. Johnson spoke in support of the recent Stagecoach Motel purchase by the Comea Shelter, noting they recently closed on the property. Mr. Johnson provided information on how the property will be utilized explaining it will be a controlled, gated environment and that their priority is resident safety.

Mr. Segrave expressed appreciation for being back in City Council chambers.

There being no further business to come before the governing body, the meeting was officially adjourned at 9:44 p.m.

Submitted by,

Kristina F. Jones,
City Clerk

This notice is available in alternative, accessible formats upon request.

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